

26TRCP00035 26TRCP00035

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-09-22

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Case Number: 26TRCP00035 Hearing Date: September 22, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday – September 22, 2026

Calendar No.

PROCEEDINGS

Christopher

Ramirez Portillo, et al. v. State Farm Mutual Automobile Insurance Companies, et al.

26TRCP00035

1.

State Farm Mutual

Automobile Insurance Companies' Motion for Protective Order Limiting the Scope of Deposition and Production of Documents

TENTATIVE RULING

State Farm Mutual Automobile Insurance Companies'

Motion for Protective Order Limiting the Scope of Deposition and Production of Documents is granted.

Background

On January 28, 2026, Plaintiff filed the petition to compel uninsured motorist arbitration.

Motion for Protective Order

In *Miranda v.*

21st Century Ins. Co. (2004) 117 Cal. App. 4th 913, the Court of Appeal held that the superior court has exclusive jurisdiction over discovery disputes arising in uninsured motorist arbitrations.

The Court is authorized to limit discovery through a protective order.

The order may be granted on the motion of any party or other person affected by the discovery sought. CCP §§

2017.020(a), 2019.020(b), 2019.030(a). A

protective order may be obtained to limit the frequency or extent of use of any discovery method on any of the following grounds: (1)

“The discovery sought is unreasonably cumulative or duplicative ...; (2)

“(The information) is obtainable from some other source that is more convenient, less burdensome or less expensive;

(3) “The selected method of

discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.” CCP §

2019.030(a)(1)-(2).

Code Civ. Proc., § 2025.420

states:

“(a) Before, during, or

after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040.

(b) The court, for good

cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance,

embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions:

(1) That the deposition not be taken at all.

(2) That the deposition be taken at a different time.

(3) That a video recording of the deposition testimony of a treating or consulting physician or of any expert witness, intended for possible use at trial under subdivision (d) of Section 2025.620, be postponed until the moving party has had an adequate opportunity to prepare, by discovery deposition of the deponent, or other means, for cross-examination.

(4) That the deposition be taken at a place other than that specified in the deposition notice, if it is within a distance permitted by Sections 2025.250 and 2025.260.

(5) That the deposition be taken only on certain specified terms and conditions.

(6) That the deponent's testimony be taken by written, instead of oral, examination.

(7) That the method of discovery be interrogatories to a party instead of an oral deposition.

(8) That the testimony be recorded in a manner different from that specified in the deposition notice.

(9) That certain matters not be inquired into.

(10) That the scope of the examination be limited to certain matters.

(11) That all or certain of the writings or tangible things designated in the deposition notice not be

produced, inspected, copied, tested, or sampled, or that conditions be set for the production of electronically stored information designated in the deposition notice.

(12) That designated persons, other than the parties to the action and their officers and counsel, be excluded from attending the deposition.

(13) That a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only to specified persons or only in a specified way.

(14) That the parties simultaneously file specified documents enclosed in sealed envelopes to be opened as directed by the court.

(15) That the deposition be sealed and thereafter opened only on order of the court.

(16) That examination of the deponent be terminated. If an order terminates the examination, the deposition shall not thereafter be resumed, except on order of the court.”

Meet and
Confer

Respondent set forth a meet and confer declaration in substantial compliance with CCP § 2025.420(a). (Declarations, Michelle Z. Maleky; Maria A. Grover, ¶¶ 2-3).

Motion for
Protective Order

Respondent moves “for issuance of a protective order barring or limiting the deposition of State Farm’s “person most knowledgeable” (“PMQ”) and production of documents requested in the notice, because all topics and categories focus on subject matter that is improper and irrelevant in an uninsured motorist arbitration proceeding.” (Notice of Motion, p. 2, lines 5-8). The motion is made on the grounds that “[t]he discovery does not seek information pursuant to Insurance

Code section 11580.2, and the applicable State Farm policy, but instead solely and improperly seeks to discover evidence to support their alleged future “bad faith” litigation.” (Id. at p. 2, lines 8-10).

Ins. Code, § 11580.2(f)

states: “The policy or an endorsement added thereto shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration.”

“Absent language in the insurance agreement expanding the issues to be arbitrated [citation], underinsured motorist arbitrations contemplate only two issues—‘whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof’ ([ibid.]). In this context, the term ‘damages’ refers to the amount of damages the insured is entitled to recover from the underinsured motorist; it does not include determination of the extent of coverage and the amount of money the insurance company is obligated to pay the insured.” *Glassman v. Safeco Ins. Co. of America* (2023) 90 Cal.App.5th 1281, 1311 (internal quotations omitted). “Issues of bad faith breach of the insurance contract are beyond the scope of the UIM arbitration.” Id. at 1311, fn. 15.

Respondent states that

liability is uncontested. Thus, the only issue for determination is whether petitioners are entitled to damages and the amount of damages. Respondent argues that the deposition notice and the accompanying document requests do not seek information regarding these topics but instead seek information related to respondent’s claims handling practices similar to what would be propounded in an insurance bad faith action. In addition, respondent states that the documents to be produced are privileged based on the attorney/client privilege, work product doctrine, and trade secret protection.

In the opposition, petitioners

stated that they agreed to narrow the categories to 8 categories and 14 requests for production during the meet and confer process. In addition, the Court notes that the opposition provided substantive arguments to only categories 2, 4, 6, and 7. It is unclear whether petitioners have abandoned categories 1, 3, 5, and 8.

The burden on a motion for protective order is on the moving party to establish "good cause" for whatever relief is requested: "Generally, a deponent seeking a protective order will be required to show that the burden, expense, or intrusiveness involved in ... [the discovery procedure] clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." *Emerson Elec. Co. v. Sup.Ct. (Grayson)* (1997) 16 C4th 1101, 1110.

Category 1 states: "State Farm's written procedures for complying with California Code of Regulations, Title 10, section 2695.1 et seq. (Fair Claims Settlement Practices Regulations) in uninsured motorist bodily injury claims, including the 40-day deadline to accept or deny a claim (§ 2695.7(b)), the 15 day acknowledgement requirement, and the requirement to provide written status updates every 30 days (§ 2695.7(c)), as applied to the handling of this claim."

Category 2 states: "The specific monetary settlement and reserving authority limits for the adjuster assigned to this claim, the claim team manager/supervisor, and any "Round Table," Large Loss Committee, Claim Committee, or Home Office committee required to approve evaluations, reserves, offers, or arbitration positions above those limits on this file."

Category 3 states: "State Farm's policies requiring supervisory, managerial, or committee review and written sign-off on UM bodily injury evaluations, reserve changes, initial offers, final offers, authorization to proceed to arbitration, and authorization of arbitration positions, as applied to this file."

Category 4 states: "The policies and procedures for setting, reviewing, and adjusting loss reserves on UM bodily injury claims, and the complete reserve history on this claim, including all increases, decreases, rationales, and approvals."

Category 5 states: "The terms, scope, and interpretation of the UM coverage on the subject State Farm Policy No. 829 4863-A28-75, including compliance with California Insurance Code section 11580.2, stacking and anti-stacking provisions, offset and credit provisions, the identity of insured persons, and the per-person and

per-accident UM limits applicable to this claim.”

Category 6 states: “The complete evaluation methodology, range assignment, and basis for each and every offer and pre-arbitration position taken by State Farm on this claim, including injury classifications, severity codes, impairment inputs, jury verdict research, comparable file data, Colossus/ClaimIQ outputs, round table notes, and supervisor/committee approvals, and the factual basis for why State Farm’s evaluation is materially lower than the insureds’ demand.”

Category 7 states: “State Farm’s training, guidelines, and policies regarding California medical damages law in UM claims, including the treatment of billed versus paid medical charges under Howell v. Hamilton Meats & Provisions, Inc. (2011) 52 Cal.4th 541, Corenbaum v. Lampkin (2013) 215 Cal.App.4th 1308, balance billing, Medi-Cal/Medicare liens, and ERISA/health plan subrogation, as applied to the evaluation of this claim

Category 8 states: “State Farm’s policies and procedures governing UM arbitration under California Insurance Code section 11580.2(f), including pre-arbitration discovery, mandatory exchange of witness and document lists, selection of the neutral arbitrator, evaluation of demands and offers within policy limits, and the internal authority and sign-offs required to extend or reject pre-arbitration settlement offers on this file.”

As can be demonstrated above, each of the categories relate to respondent’s evaluation of petitioners’ damages and internal methodology as to how respondent evaluated the amount. These categories are beyond the scope of an uninsured or underinsured motorist bodily injury arbitration action. Similarly, as to document requests 1 to 5 and 9 to 14, the requests for documents also seek documents related to respondent’s internal evaluation and investigation of the claim and do not seek information as to petitioners’ damages. The requests for these documents attempt to understand respondent’s potential offers made to petitioners. However, the requests do not contemplate obtaining information as to the element of damages, but, instead, are designed to understand the basis for respondent’s settlement offers. In addition, such requests for documents related to the claims handling

practices may also implicate matters of attorney/client privilege, trade secret protection, and the attorney work product doctrine.

As to request 6, coverage is not at issue and respondent states that it has already produced a copy of the insurance policy. Requests 7 and 8 appear to seek documents that may be related to damages. However, since the motion for protective order is being granted as to all the categories at issue here, any requests that are tied to the deposition notice must also be encompassed within the protective order.

Respondent has established good cause for the issuance of a protective order. Any deposition notice that is re-noticed shall be limited to the scope of the issues involved in a UM arbitration action namely liability and damages. As it appears that the notice that was issued in this case did not limit the scope of inquiry into these areas, respondent is not required to appear and produce documents in conformity with the subject notice. Petitioners may re-notice another deposition and the parties are free to meet and confer to discuss the scope of the deposition and documents to be produced. While respondent argues that a deposition of a claims adjuster is not authorized, no binding California authority has been produced which prevents such a deposition. Instead, respondent only cited to out of state authority.

For the foregoing reasons, State Farm Mutual Automobile Insurance Companies' Motion for Protective Order Limiting the Scope of Deposition and Production of Documents is granted.

Sanctions

Petitioners' request for monetary sanctions is denied.

Respondent is ordered to give notice of this ruling.